

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
OSCAR GARCIA,**SUMMONS**

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
BRANDON FENNELL, SHIELD NO. 19836, NYPD
POLICE OFFICERS JOHN/JANE DOES NUMBERS ONE
THROUGH TEN,Plaintiff designates Bronx
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 16, 2023

Yours, etc.

Lara Belkin, Esq.

Lara Belkin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER BRANDON FENNELL, SHIELD NO. 19836, 45th Precinct,
2877 Barkley Avenue, the Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

OSCAR GARCIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
BRANDON FENNELL, SHIELD NO. 19836, NYPD
POLICE OFFICER JOHN/JANE DOES NUMBERS ONE
THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff OSCAR GARCIA, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 20, 2022, at approximately 10:00 p.m., Plaintiff Oscar Garcia was subjected to an unlawful stop, excessive force, detention, and false imprisonment by defendant NYPD police officers while lawfully driving in the vicinity of the corner of East Tremont Avenue and Myers Avenue, County of the Bronx, NY. Plaintiff remained in police custody from May 20 to May 22, 2022, at which point he was arraigned by a judge and charged with Criminal Possession of a Controlled Substance in the Seventh Degree. All charges against Plaintiff were dismissed on September 6, 2022. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Oscar Garcia is a resident of the state of New York.

3. New York City Police Officer Brandon Fennell, Shield No. 19836, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Brandon Fennell, Shield No. 19836, is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Brandon Fennell, Shield No. 19836, was assigned to the 45th Precinct of the NYPD.

6. New York City Police Officers John/Jane Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John/Jane Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on December 29, 2022.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On May 20, 2022, at approximately 10:00 p.m., Plaintiff was lawfully operating his girlfriend's 2013 Honda Pilot in the vicinity of East Tremont Avenue and Myers Avenue, County of the Bronx, New York. He was driving to his mother's residence in Queens, New York, when he was pulled over by the defendant Police Officers without legal justification.

16. Upon seeing the flashing lights of the police vehicle behind him, Plaintiff immediately pulled to the side of the street and stopped his car.

17. Defendant officers approached the vehicle and asked Plaintiff for his license and registration.

18. Plaintiff handed defendant officers his valid license and registration.

19. After running his license and registration, defendant officers told Plaintiff they were issuing him tickets for making an improper turn and the tints on his windows.

20. Plaintiff was then instructed by defendant Police Officers to step out of the car, absent reasonable suspicion or probable cause.

21. Defendant officers then conducted an illegal pat-down search of Plaintiff. No weapons or illegal contraband were recovered from Plaintiff's person.

22. Nonetheless, defendant officers then handcuffed Plaintiff's wrists tightly with metal cuffs and ordered him to stand at the back of his car.

23. While defendant stood, in handcuffs, six additional police officers and detectives arrived at the scene and questioned Plaintiff about guns.

24. Plaintiff was not informed of his Miranda rights before being questioned.

25. Over the course of an hour, defendant officers questioned Plaintiff about gang affiliations and the contents of his vehicle, threatening to call his parole officer if he did not cooperate.

26. Plaintiff explained that he was working full time and did not have any information for them.

27. During this time, Plaintiff's girlfriend, who lived nearby, arrived at the scene and asked defendant officers why they were interrogating Plaintiff rather than just giving him the tickets and letting him leave.

28. Defendant officers then asked Plaintiff if they could search the car.

29. Plaintiff told defendant officers that he would not consent to the search of his car unless they got a warrant.

30. Plaintiff was then transported to the 45th precinct in a black, unmarked detective's vehicle.

31. Plaintiff, who is five feet, nine inches and weighs 211 pounds, told the detective that he was in significant pain from being shoved in the back of the small vehicle with his hands tightly cuffed behind his back.

32. Plaintiff asked why he was being arrested and was told he would find out at the precinct.

33. At no point did Plaintiff resist this unlawful arrest in any way.

34. At the 45th Precinct, Plaintiff was placed in a holding cell after his property had been vouchered. Plaintiff still did not know why he had been arrested.

35. Plaintiff requested medical attention for his swollen and painful right wrist. Defendant officers refused his request.

36. At approximately 3:00 a.m. on May 21, 2022, Plaintiff was transferred to Central Booking where he was again placed in a holding cell.

37. Plaintiff received limited medical attention at Central Booking for the swelling in his right-hand. Plaintiff was given a hot pack for the pain.

38. Plaintiff remained at Central Booking until May 22, 2022, when he was brought to court for his arraignment.

39. Plaintiff learned from his assigned attorney that he was being charged with misdemeanor possession of a controlled substance. The Judge released him on his own recognizance.

40. While Plaintiff was in custody, the Defendant Officers knowingly submitted false evidence to the Bronx County District Attorney's Office resulting in Plaintiff's spurious prosecution for criminal possession of a controlled substance.

41. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was in unlawful possession of a controlled substance.

42. Plaintiff made four subsequent in person court appearances before the charges were dismissed and sealed on September 16, 2022.

43. Plaintiff sought medical treatment for the injury to his wrist caused by the unlawful conduct by Defendant Officers the day after his release from police custody at an urgent care facility located in East Tremont. He was given a brace for his right wrist and told he might need surgery in the future.

44. Since October of 2022, Plaintiff has been attending physical therapy for his hand twice every week. He may still require surgery to fully repair the damage in his right hand. Plaintiff continues to wear a brace on his right hand to help manage the flare-ups of pain there.

45. Plaintiff is right-handed, and the injury to his right wrist continues to cause him substantial pain and limit his ability to perform everyday tasks.

46. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective, credible reason to accuse Plaintiff of committing a crime or violating the law in any way.

47. As a result of this unlawful arrest, Plaintiff experiences heightened levels of anxiety, depression, and paranoia whenever he is in close proximity to police officers. Plaintiff lives near the 45th Precinct, often sees Defendant Officers, and is constantly reminded of the events that transpired during his unlawful arrest.

48. As a result of this baseless, unlawful arrest, Plaintiff developed thoughts of suicidal ideation spurred on by a fear of returning to jail and being separated from his child.

49. Plaintiff had previously been diagnosed with bipolar disorder and has sought counseling for his anxiety and depression aggravated by this unlawful arrest.

50. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff's person or from a location that was in Plaintiff's possession, custody, or control.

51. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

52. Plaintiff continues to suffer emotional trauma and distress from the actions of defendant officers complained of above.

53. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

54. The unlawful seizure, arrest, and imprisonment by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

55. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

57. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

58. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

61. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

62. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in

violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

63. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION
False Imprisonment

64. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

65. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondent superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights:
Excessive Force**

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

71. The use of excessive force by defendants by, amongst other things, roughly handcuffing and shoving Plaintiff into a vehicle constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

72. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**Negligence**

73. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to Plaintiff.

75. To the extent defendants claim that the injuries to Plaintiff by the Defendant Police Officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by injuring his wrists.

76. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

77. All of the foregoing occurred without any fault or provocation by Plaintiff.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

81. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

82. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

83. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

84. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

88. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

89. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

90. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Failure to Intervene

91. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

92. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

99. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

101. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

102. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

103. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

104. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TENTH CAUSE OF ACTION
Malicious Prosecution

108. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

109. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

110. Defendants commenced and continued a criminal proceeding against Plaintiff.

111. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

112. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION
Individual Defendant Officer's Failure to Intervene in
Violation of Plaintiff's AC 8-802 Rights

113. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

114. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

115. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure

in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

116. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

117. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

118. Defendant Officers, while in uniform, unlawfully seized and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 3 days in total.

119. By reason of the acts and omissions by Defendants described above, Plaintiff has endured psychological and emotional injuries.

TWELVTH CAUSE OF ACTION
Violation of Article I, § 12 of the New York State Constitution

120. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

121. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

122. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

123. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

124. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

125. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Oscar Garcia demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
February 16, 2023

By: *Lara Belkin, Esq.*
Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER BRANDON FENNELL, SHIELD NO. 19836, 45th Precinct,
2877 Barkley Avenue, the Bronx, NY 10465

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 16, 2023



LARA BELKIN